

Notice of Intent to Sole Source for maintenance of equipment(s).
Special Notice # NIHODAM042525

The National Institutes of Health (NIH) intends to award a Base Plus 4 Option Year Contract to Leica Microsystems Inc. maintenance of equipment(s).

In accordance with FAR Part 6.302-1, the Contractor is the only known responsible source who can provide the specific maintenance for equipment(s) per specifications below.

This notice is not a request for competitive quotes. However, any party that believes it can provide the services as stated herein may submit a written capability statement that clearly supports and demonstrates their ability to satisfy the requirement. A determination by the Government to compete this proposed award based upon responses to this notice is solely within the discretion of the Government.

It is anticipated that an award will be issued approximately five (5) days after the date of this notice unless the Government determines that another prospective offeror has the capability to meet this requirement.

In accordance with FAR Part 6.302-1, the Contractor is the only known responsible source who can provide the specific maintenance for equipment(s) per specifications below.

Introduction: Pursuant to Federal Acquisition Regulation 13.106-3(b)(3)(i), the following data is furnished to the Contracting Officer to support the requisitioning office's request that the items/services identified on the above-mentioned Requisition be obtained using other than full and open competition. The requisitioning office understands that a contract may not be awarded on a sole source/brand name only basis unless the Contracting Officer approves Other than Full and Open Competition.

- 1. Identification of the Agency: HHS/NIH/NEI**
- 2. Nature and or/Description of Action Being Approved: Annual Service Agreement by Leica Microsystems.**
- 3. Description of the supplies and services required to meet the Agency's needs: Annual Service Coverage for Leica CM3050 S configured (Serial no: 4311092005); Leica CV5030 (Serial no: 521824); AXL 100-120/50-60 TS5015 (Serial no: 1200092005); ASP6025 120V/50-60 Hz (Serial no: 368) in BIC/OSD/NEI. Maintenance agreement is for Base Year and 4 Option Years. The maintenance agreement includes repairs performed by factory trained service engineer, replacement parts, software updates, travel, and labor.**

4. **Proposed Contractor's unique qualifications:** Leica Microsystems has an international reputation in the field of confocal microscopy. Leica Microsystems engineers have access to specialized components manufactured specifically for the Leica CM3050 S configured (Serial no: 4311092005); Leica CV5030 (Serial no: 521824); AXL 100-120/50-60 TS5015 (Serial no: 1200092005); ASP6025 120V/50-60 Hz (Serial no: 368).
5. **Additional Supporting Facts:**

Brand Name only: The NEI requires rapid and reliable service and repair of Leica CM3050 S configured (Serial no: 4311092005); Leica CV5030 (Serial no: 521824); AXL 100-120/50-60 TS5015 (Serial no: 1200092005); ASP6025 120V/50-60 Hz (Serial no: 368) operated by the NEI Biological Imaging Core. These are critical imaging systems on which many NEI scientists depend. We are seeking a service contract through Leica Microsystems because they are the only company with access to custom components for the systems, diagnostic software for system evaluation and experienced, factory-trained field engineers capable of diagnosing and repairing instrument malfunctions in a timely manner.

Statement of Work

STATEMENT OF WORK- Silver Service agreement for Leica CM3050 S configured (Serial no: 4311092005); Leica CV5030 (Serial no: 521824); AXL 100-120/50-60 TS5015 (Serial no: 1200092005); ASP6025 120V/50-60 Hz (Serial no: 368) in BIC/OSD/NEI. Maintenance agreement is for Base Year and 4 Option Years.

1. **SCOPE:** Contractor to provide all labor and replacement parts to repair government-owned Leica equipment mentioned above for the period 03/01/2025 - 02/28/2026. Exercising Base Year option. All maintenance services shall be performed in accordance with the Leica-Microsystems standard commercial maintenance practices.
2. **EMERGENCY SERVICE:** Emergency repair services shall be provided on an unlimited basis during the term of this contract at no additional cost to the government. Emergency service shall be provided 8:00AM – 5:00PM Monday thru Friday excluding Federal Holidays. Repairs will be provided by Leica-Microsystems trained and qualified field service engineers. Upon receipt of notice that any part of the equipment is not functioning properly the Contractor shall within twenty-four (24) hours furnish a qualified factory-trained service representative to inspect the equipment and perform all repairs and adjustments necessary to restore the equipment to normal and efficient operating condition. Emergency service calls shall not replace the necessity for scheduled PMIs.

3. REPLACEMENT PARTS: The contractor, Leica Microsystems shall furnish all required replacement parts including Unlimited Replacement service parts, components, or modules necessary for repairs, 3rd Party parts, and IR/MP lasers at no additional cost to the Government, except for consumable parts. Parts shall be new or remanufactured to original equipment specifications.

4. SOFTWARE UPDATES/SERVICE: The contractor shall provide Software Service in accordance with the manufacturer's latest established service procedures, to include telephone access to technical support for use of program software and troubleshooting of the operating systems, at no additional cost to the Government. The contractor shall receive advance approval for the installation of all software updates and revisions from the Government. Defective software shall be replaced at no additional cost to the government.

5. SERVICE EXCLUSIONS: The contractor shall not be responsible for any repairs necessitated by abuse, neglect, vandalism, Acts of God, fire or water. These repairs shall be the subject of a separate purchase order and shall not be performed under this contract.

6. PERIOD OF PERFORMANCE: Period of Performance To Be Determined (TBD) – (Base Year Option).

7. PERSONNEL QUALIFICATIONS: Leica-Microsystems personnel providing service and repairs will be factory-trained, qualified field service engineers having a minimum of two (2) years' experience in the servicing of Leica Microsystems confocal microscopes as those covered by this contract.

8. PLACE OF PERFORMANCE: Service shall be performed at the following location:

NEI Biological Imaging Core
Bldg. 6 - Room 209A
6 Center Drive
National Institutes of Health
Bethesda, MD 20892

NOTE: Please email responses to andrew.maine@nih.gov no later than 9:00 a.m. EST on Wednesday, April 30, 2025.